

Plaintiffs have not pleaded any statutory basis for imposing any duty or liability on Defendant County of Solano, a public entity, for its failure to “evaluate” the dog for dangerousness or transferability. The only statute identified in the first amended complaint is Food and Agricultural Code section 31603, which merely defines the term “vicious dog” without imposing any duty on shelters to evaluate dogs for being vicious.

As for the fifth cause of action for “strict liability”, Civil Code section 3342 imposes liability on the **owner** of a dog for the damages suffered by any person bitten by that dog while in a public place or lawfully in a private place regardless of the owner’s knowledge of the viciousness of the dog. While the liability may be imposed on a “keeper” of a dog if the keeper has prior knowledge of the vicious propensities of the dog, a “keeper” is someone who “harbors” or undertakes to control the actions of a dog. (*Buffington v. Nicholson* (1947) 78 Cal.App.2d 37, 41-42.) Plaintiffs alleged both that Defendant was not the owner of the dog (FAC, ¶ 12) and that Defendant relinquished possession and control of the dog to Plaintiffs (*id.* at ¶¶ 15, 18). Once possession was turned over to Plaintiffs, Plaintiffs became the keepers of the dog. Plaintiffs alleged that the attack occurred 15 minutes after they returned home, after Defendant ceased harboring or undertaking to control the actions of the dog.

Plaintiffs have made no attempt to meet their burden of showing “in what manner [they] can amend [these causes of action] and how that amendment will change the legal effect of [the] pleading.” (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Cooper v. Equity Gen. Ins.* (1990) 219 Cal.App.3d 1252, 1263-1264; *McMartin v. Childrens’ Inst. Int’l* (1989) 212 Cal.App.3d 1393, 1408.)

COLEMAN v. SELECT PORTFOLIO SERVICING, INC., ET AL.
Case No. CU26-00897

Motion for Leave to File First Amended Complaint

TENTATIVE RULING

Plaintiff’s motion for leave to file first amended complaint is DENIED.

The motion suffers from a myriad of procedural defects.

The motion does not include a copy of the proposed amended pleading. (Cal. Rules of Court, rule 3.1324(a)(1).) It does not state what allegations are proposed to be deleted from the prior pleading by page, paragraph, and line number. (Cal. Rules of Court, rule 3.1324(a)(2).) It does not state what allegations are proposed to be added to the prior pleading by page, paragraph, and line number. (Cal. Rules of Court, rule 3.1324(a)(3).) The accompanying declaration does not state the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, or why the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).)

Additionally, Plaintiff has not filed a proof of service demonstrating proper and timely service of the motion papers on all appearing defendants. All moving and supporting papers must be served at least 16 court days prior to the hearing. (Code Civ. Proc. § 1005(b).) All defendants that have appeared are entitled to notice of all subsequent proceedings of which notice is required to be given. (Code Civ. Proc. § 1014.) Proof of service had to be filed no later than five court days prior to the hearing. (Cal. Rules of Court, rule 3.1300(c).)

The court confirms the July 15, 2026, hearing on Wells Fargo's demurrer.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002